Hauraki Gulf / Tīpaka Moana Marine Protection (Restoration of High Protection Areas) Amendment Bill

Explanatory note

General policy statement

This Bill amends the Hauraki Gulf / Tīkapa Moana Marine Protection Act 2025 to remove the Act's current exemption which allows authorised persons to undertake ring net fishing in the high protection areas.

Clause by clause analysis

Clause 1 is the Title clause.

Clause 2 is the commencement clause and provides for the Bill to come into force on the day after Royal assent.

Clause 3 states that the Bill amends the Hauraki Gulf / Tīpaka Moana Marine Protection Act 2025.

Clauses 4 and 5 contain consequential amendments arising from the amendments in *clauses 6 and 7*.

Clause 6 repeals section 23 of the Act, which provides that a person may undertake ring net fishing in the Kawau Bay High Protection Area and the Rangitoto and Motutapu High Protection Area if the person is authorised by the Director General.

Clause 7 replaces section 74 of the Act, which provides for the making of regulations that prescribe the restrictions and conditions that apply to authorised persons undertaking ring net fishing, with a new regulation-making power that allows regulations to be made to provide for additional management actions in relation to activities that occur within high protection areas.

Clause 8 replaces the cross-heading above section 75 to reflect the changes made by *clause 9*.

Clause 9 repeals sections 76 and 77, which provided for a review of the operation of the ring net fishing provisions, and empowered the making of an Order in Council to repeal those provisions following the review.

Clause 10 and *the Schedule* provide for transitional matters. In particular, the revocation of existing authorisations under section 24 and confirmation that no compensation is payable in respect of that revocation.

Chlöe Swarbrick

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The Parliament of New Zealand enacts as follows:

1 Title

This Act is the Hauraki Gulf / Tīpaka Moana Marine Protection (Restoration of High Protection Areas) Amendment Act **2026**.

2 Commencement

This Act comes into force on the day after Royal assent.

3 Principal Act

This Act amends the Hauraki Gulf / Tīkapa Moana Marine Protection Act 2025.

4 Section 7 amended (How this Act applies biodiversity objectives)

After section 7(1)(c), insert:

(d) **section 74** provides for the making of regulations that provide for additional management actions relating to high protection areas where restrictions imposed by regulations made under section 73 are not sufficient to achieve the biodiversity objectives.

5 Section 21 amended (Activities prohibited in high protection areas)

In section 21(1)(a), delete "23,".

6 Section 23 repealed (Ring net fishing for authorised persons in certain high protection areas)

Repeal section 23.

7 Section 74 replaced (Regulations for restrictions and conditions that apply to authorised persons undertaking ring net fishing)

Replace section 74 with:

74 Regulations for additional management actions in high protection areas

(1) The Governor-General may, by Order in Council made on the recommendation of the Minister, make regulations that provide for additional management actions in relation to activities that occur within high protection areas.

(2) Before making a recommendation under **subsection (1)**, the Minister must be satisfied that—

(a) biodiversity objectives and associated restrictions have been established by regulations made under section 73 in relation to the high protection area; and

(b) there is evidence that the restrictions are not sufficient to achieve the biodiversity objectives; and

(c) the additional management actions are necessary to achieve the biodiversity objectives.

(3) The Minister must not make a recommendation under **subsection (1)** unless the Minister is satisfied that the proposals for regulations were developed in consultation with iwi that exercise kaitiakitanga in the relevant high protection area.

(4) Regulations made under this section are secondary legislation (*see* Part 3 of the Legislation Act 2019 for publication requirements).

8 Cross-heading above section 75 replaced

Replace the cross-heading above section 75 with:

Review of seafloor protection areas and high protection areas

9 Section 76 and 77 repealed

Repeal sections 76 and 77.

10 Schedule 1 amended

In Schedule 1,—

(a) insert the Part set out in the **Schedule** of this Act as the last Part; and

(b) make all necessary consequential amendments.

Schedule
New Part 1 inserted into Schedule 1

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Part 1
Provisions relating to Hauraki Gulf / Tīkapa Moana Marine Protection (Restoration of High Protection Areas) Amendment Act 2026

1 Interpretation

In this Part,—

amendment Act means the Hauraki Gulf / Tīkapa Moana Marine Protection (Restoration of High Protection Areas) Amendment Act **2026**

commencement date means the date on which the amendment Act comes into force

existing authorisation means an authorisation to undertake ring net fishing under section 24 of this Act, as it was in force immediately prior to the commencement date.

2 Existing authorisations revoked

All existing authorisations are revoked on the commencement date.

3 No compensation payable

(1) A person is not entitled to any compensation or other payment or benefit for any of the following that arises from the enactment or operation of the amendment Act:

(a) any adverse effect on their rights or interests:

(b) any other loss or damage suffered or likely to be suffered by the person.

(2) If there is any inconsistency between this section and any other enactment or rule of law, this clause prevails over that enactment or rule of law.